

**BEFORE
THE FEDERAL MARITIME COMMISSION**

DOCKET NO. 22-34

SEAFair USA, LLC

VS.

STERLING CONTAINER LINE LIMITED AND
ATLANTIC FORWARDING LTD.

**COMPLAINANT’S MOTION FOR LEAVE TO FILE REPLY TO RESPONDENTS’
RESPONSE IN OPPOSITION TO COMPLAINANT’S MOTION TO STRIKE**

Complainant, SeaFair USA, LLC (“SeaFair” or “Complainant”), pursuant to 46 C.F.R. §502.71(c), hereby requests the leave to file the attached Reply to Respondents’ Response in Opposition to Complainant’s Motion to Strike (“Respondents’ Response”) [Dkt. 47] due to the extraordinary circumstances set forth herein.

Counsel for Complainant has conferred with counsel for Respondents pursuant to 46 C.F.R. §502.71(a), and they have stated that Respondents oppose this Motion.

I. TIMING AND EXTRAORDINARY CIRCUMSTANCES

In Respondents’ Response, Respondents argue that Complainant treated their Petition for Attorney Fees and related documents (the “Petition”) [Dkt. 41-43] as properly filed in its Motion for Enlargement of Time to File a Reply [Dkt. 44] and that its Reply to the Petition that was served on the ALJ and opposing counsel on July 11, 2024, did not contain any arguments as to improper service. See Respondents’ Response, at 4-5. Respondents are correct that Complainant

did not allege the Petition was not properly filed before its Motion to Strike, but that is only true because Complainant did not and could not have known Respondents had not sent a copy of the Petition to the Secretary for filing.

The Petition included a request for confidential treatment of the exhibits attached to the Declaration of Ashley K. Kelley. See Dkt. 43. The email that counsel for Complainant received from counsel for Respondents effectuating service of the Petition contained only the public versions of the Exhibits to the Declaration of Ashley K. Kelley. See Motion to Strike, Exhibit 4. Complainant did not initially notice that the Office of the Secretary was not copied in that email, and Complainant reasonably believed that a separate email containing the full version of the Petition, with both the public and confidential versions of the Exhibits, must have been sent directly to the Secretary for filing.

After the ALJ alerted Complainant that its Reply to the Petition had not been docketed because Complainant inadvertently failed to file with the Secretary, Complainant noticed the email it received serving the Petition with the public version of the exhibits was not sent to the Office of the Secretary and promptly contacted Respondents requesting proof that the Petition was filed with the Office of the Secretary. No proof was provided, and Respondents admit that they did not send the Petition to the Secretary. See Respondents' Response, at 3-4.

Complainant had no reason to suspect that the Petition had not been properly filed pursuant to 46 C.F.R. §502.2 prior to August 1, 2024, as it appeared on the docket. Complainant promptly filed a Motion to Strike on August 2, 2024, after Respondents failed to provide proof of filing. [Dkt. 46]. The fact that the Petition was docketed is not irrefutable proof that the Petition was properly filed.

CONCLUSION

The document at issue, Respondents' Petition for Attorney Fees, seeks a significant sum in attorney fees. If it was never filed in compliance with the rules of the Commission, it should not be considered and should be struck from the record. Given the Petition's potential to adversely impact Complainant and the new information regarding Respondents' failure to comply with the filing requirements, Complainant respectfully submits that the extraordinary circumstances underlying the (non-)filing of the Petition warrant the filing of a reply and request the Reply attached as **Exhibit 1** be filed accordingly.

Respectfully Submitted,

LIANG + MOONEY, PLLC

/s/ Shanshan Liang

Shanshan Liang, Esq.

Fla. Bar No. 112991

2104 Delta Way, Suite #1

Tallahassee, FL 32303

Telephone: (850) 893-0670

Email: sliang@customscourt.com

Counsel for Complainant

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 14th day of August 2024, the foregoing Motion for Leave to File a Reply to Respondents' Response in Opposition to Complainant's Motion to Strike was served via electronic mail on:

Federal Maritime Commission
Office of the Secretary
secretary@fmc.gov

Federal Maritime Commission
The Honorable Alex M. Chintella
Presiding Administrative Law Judge
judges@fmc.gov

Ashley K. Kelley, Esq.
Telephone: (843) 720-4679
Email: Ashley.Kelley@wbd-us.com
Womble Bond Dickinson (US) LLP
5 Exchange Street
PO Box 999 (29402)
Charleston, SC 29401

Julius H. Bodie, Esq.
Telephone: (202) 857-4552
Email: Julius.Bodie@wbd-us.com
Womble Bond Dickinson (US) LLP
2001 K Street, NW
Suite 400 South
Washington D.C. 20006

/s/ Shanshan Liang
Shanshan Liang, Esq.